

STATE OF INDIANA COUNTY OF VANDERBURGH

IN THE VANDERBURGH SUPERIOR COURT CAUSE NO. 82D01-2512-CT-008032

THE ESTATE OF LEONARDO (“LEO”)

ESLINGER, et al.,

Plaintiffs,

v.

Related Case Numbers:

**26S-SJ-00061 (Supreme Court Special
Judge Appointment)**

**14D01-2603-CB-000248 (Change of
Venue from Daviess)**

**14D01-2603-CB-000258 (Change of
Venue from Daviess)**

JILLIAN N. KRATOCHVIL, and STOLL,

KEENON, OGDEN, PLLC,

Defendants.

**MEMORANDUM E: IN SUPPORT OF PLAINTIFFS’ REQUEST FOR
CERTIFICATION OF ORDERS FOR INTERLOCUTORY APPEAL**

Plaintiffs, The Estate of Leonardo Eslinger, et al. (“Plaintiffs”), respectfully submit this memorandum as their alternative request for relief. Should this Court deny Plaintiffs’ Omnibus Motion to Vacate the May 6, 2026 Orders, Plaintiffs request that the Court certify those orders for interlocutory appeal pursuant to Indiana Appellate Rules 14(A)(8) and 14(B) to prevent irreparable prejudice and ensure the orderly disposition of this case.

ARGUMENT

I. The Jurisdictional Deadline for Interlocutory Appeal is Imminent.

Under Indiana Appellate Rule 9(A), a Notice of Appeal for an interlocutory order must be filed within thirty (30) days after the date the order is noted in the Chronological Case Summary. The orders at issue were entered on May 6, 2026. Therefore, the jurisdictional deadline to initiate an appeal is **June 5, 2026**. This deadline is not tolled by a motion to reconsider. Further, under Indiana Trial Rule 53.4, if this Court does not rule on Plaintiffs' Omnibus Motion within five (5) days, it is deemed denied by operation of law, starting the appellate clock. *See Jackson v. Paris*, 598 N.E.2d 1106 (Ind. Ct. App. 1992). Given this urgency, Plaintiffs respectfully request that the Court either grant the motion to vacate or, in the alternative, certify the orders for immediate appeal.

II. The Venue Denial is Appealable as a Matter of Right.

The Court's order denying Plaintiffs' Motion for Change of Venue is directly and immediately appealable as a matter of right. Indiana Appellate Rule 14(A)(8) explicitly provides for an interlocutory appeal from an order "transferring or refusing to transfer a case under Indiana Trial Rule 75." The Indiana courts have consistently affirmed this right. *See Gulf Stream Coach, Inc. v. Cronin*, 903 N.E.2d 109, 111 (Ind. Ct. App. 2009) ("Gulf Stream now brings this interlocutory appeal as a matter of right under Indiana Appellate Rule 14(A)(8)."); *see also City of Gary v. Majestic Star Casino, LLC*, 905 N.E.2d 1076, 1079 (Ind. Ct. App. 2009). Because this right is absolute, Plaintiffs will be filing a Notice of Appeal on this issue on or before June 5, 2026, to preserve it.

III. The Remaining Orders Present Substantial Questions of Law That Justify Discretionary Appeal.

Under Indiana Appellate Rule 14(B), a court may certify an interlocutory order for appeal if it determines that (1) the appellant will suffer substantial expense, damage, or injury if the order is erroneous and the appeal is delayed; (2) the order involves a substantial question of law, the early determination of which will promote a more orderly disposition of the case; or (3)

the remedy by appeal after judgment is otherwise inadequate. The standards favor promoting judicial economy by resolving pivotal legal issues early. *See Daimler Chrysler Corp. v. Indiana*, 940 N.E.2d 798 (Ind. 2010); *Allstate Vehicle & Property Ins. Co. v. Druetz*, 983 N.E.2d 463 (Ind. 2012).

The remaining May 6 Orders present several such substantial questions of law:

1. **Appointment of Counsel: Can an indigent estate be denied appointed counsel when Indiana law unequivocally prohibits a non-attorney personal representative from representing the estate *pro se*?** This is a profound question of constitutional due process and access to the courts under Article 1, Section 12 of the Indiana Constitution. An erroneous denial forces the Estate into a legal impossibility—either violate the law or suffer a default judgment—which cannot be remedied after a final judgment.
2. **Grant of SKO's Protective Order: Can a protective order be granted based on a party's material misrepresentations to the court that conceal its own tortious interference and ongoing efforts to harass an adverse party?** This question implicates the crime-fraud exception to privilege and the court's duty to sanction fraud upon the tribunal. Forcing Plaintiffs to litigate to final judgment without access to this crucial evidence would cause irreparable harm.
3. **Denial of Plaintiffs' Motion for Expedited Discovery: Should a court permit expedited discovery into a party's extrajudicial conduct when a *prima facie* showing has been made that the conduct constitutes an ongoing fraud on the court and tortious interference with the opposing party's business affairs?** The denial of discovery on this issue prevents Plaintiffs from proving a central component of their case—SKO's pattern of unethical conduct and corporate culture of concealment.

An early determination of these issues by the Court of Appeals is critical. If the denial of counsel is reversed, the entire litigation posture changes. If the protective order is reversed, discovery will proceed along a completely different track. Resolving these issues now will prevent a potential retrial and promote a far more orderly disposition of this complex case.

CONCLUSION

Plaintiffs respectfully request that the Court grant their Omnibus Motion to Vacate. However, if the Court denies the motion, Plaintiffs pray that the Court:

1. Acknowledge that the venue order is appealable as of right under App. R. 14(A)(8);
2. **CERTIFY** its other May 6 Orders for interlocutory appeal under App. R. 14(B); and
3. **GRANT** a stay of all proceedings pending the outcome of the interlocutory appeal to preserve the status quo and promote judicial economy.